

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Casey McCann	Team: Squad #14	CCRB Case #: 202000781	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☒ O.L.	☐ Injury
Incident Date(s) Thursday, 01/23/2020 4:10 PM	Location of Incident: 46th Precinct Stationhouse	Precinct: 46	18 Mo. SOL 7/23/2021	EO SOL 3/9/2022	
Date/Time CV Reported Wed, 01/29/2020 10:54 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Wed, 01/29/2020 10:54 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. DT3 David Demelia	02215	920200	NARCB BX
2. DT3 Roberto Toribio	03100	948148	NARCB BX
3. DT3 Claude Mede	03751	939006	NARCB BX

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. DT3 Mark Oconnell	05367	900544	NARCB BX

Officer(s)	Allegation	Investigator Recommendation
A.DT3 David Demelia	Discourtesy: Detective David Demelia spoke discourteously to an individual.	
B.DT3 David Demelia	Off. Language: Detective David Demelia made remarks to an individual based upon the gender of an individual.	
C.DT3 David Demelia	Discourtesy: Detective David Demelia spoke discourteously to an individual.	
D.DT3 Roberto Toribio	Abuse: Detective Roberto Toribio strip-searched § 87(2)(b)	
E.DT3 Claude Mede	Abuse: Detective Claude Mede strip-searched § 87(2)(b)	

Case Summary

On January 29, 2020, § 87(2)(b) filed this complaint via the CCRB's online website.

On January 23, 2020, at approximately 4:10 p.m., members of the Bronx Narcotics Bureau arrested § 87(2)(b) and § 87(2)(b) pursuant to buy and bust operations in the confines of the 46th Precinct in the Bronx. Detective David Demelia of Bronx Narcotics Bureau allegedly told an unidentified female prisoner lodged in a cell, "Mind your fucking business" and "Shut the fuck up, bitch" (**Allegations A and C: Discourtesy, § 87(2)(g); Allegation B: Offensive Language, § 87(2)(g)**). Detective Roberto Toribio and Detective Claude Mede, also of Bronx Narcotics Bureau, allegedly strip-searched § 87(2)(b) (**Allegations D and E: Abuse of Authority, § 87(2)(g)**).

§ 87(2)(b) was arrested for § 87(2)(b)

§ 87(2)(b) (BR 01). [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

§ 87(2)(b) was arrested for § 87(2)(b)

§ 87(2)(b) (BR 02). [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

No body-worn camera footage exists of this incident as officers assigned to the Bronx Narcotics Bureau were not equipped with body-worn cameras at the time of this incident. Footage from the 46th Precinct stationhouse was received and will be discussed in further detail below.

Findings and Recommendations

Allegation (A) Discourtesy: Detective David Demelia spoke discourteously to § 87(2)(b)

Allegation (B) Offensive Language: Detective David Demelia made remarks to § 87(2)(b)

based upon the gender of § 87(2)(b)

Allegation (C) Discourtesy: Detective David Demelia spoke discourteously to § 87(2)(b)

The investigation established the following facts:

Now-retired Detective Mark O'Connell, formerly of Bronx Narcotics Bureau, subsequently arrested § 87(2)(b) and § 87(2)(b). Det. Toribio and Det. Mede then transported § 87(2)(b) and § 87(2)(b) to the 46th Precinct stationhouse for processing. At the 46th Precinct stationhouse, Det. Demelia searched § 87(2)(b) in front of the holding cells prior to lodging him in the cells. Det. Toribio and Det. Mede brought § 87(2)(b) into the bathroom, adjacent to the cells, where § 87(2)(b) removed at least one pair of pants. The officers then lodged § 87(2)(b) and § 87(2)(b) into the cells.

§ 87(2)(b) (BR 03) testified that he was wearing jeans with a belt with thermals and boxers underneath, a blue Nike zip-up hoodie, and a tan, fleeced-line jacket on the day of the incident. § 87(2)(b) boxers had a "slit" in the fly area. In the cell area of the 46th Precinct stationhouse, Det. Demelia told § 87(2)(b) he was going to search him. § 87(2)(b) held his arms out parallel to his body while Det. Demelia unbuckled § 87(2)(b) belt and jeans. § 87(2)(a)

§ 87(2)(b) testified that after Det. Demelia entered his pants, a female prisoner lodged in the female cell told Det. Demelia, "Yo, you can't do that." Det. Demelia responded, "Mind your fucking business. Shut the fuck up, bitch." § 87(2)(b) was not sure if Det. Demelia definitely used the word "bitch" but said that it was "something disrespectful."

Both the Command Log (BR 04) and Prisoner Holding Pen Roster (BR 05) from the 46th Precinct were redacted and thus the investigation could not identify the victim of Allegations A-C

from those documents. The investigation subsequently performed a Booking and Arraignment Disposition System (BADs) search to locate identification information for female prisoners. However, all arrests involving females were sealed except for the arrest of § 87(2)(b), listed as a § 87(2)(b)-old Black Hispanic female. § 87(2)(b) was arrested at 12:48 a.m. and according to her arraignment sheet, she was lodged for 14 hours and eight minutes, which means her lodging ended before § 87(2)(b) arrest took place. § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b) was unavailable to the investigation and therefore no statement was obtained from him (see IAs for contact attempts).

In the stationhouse video footage from the camera angle opposite the door to the cell area (BR 06-07), which does not have an audio component, § 87(2)(b) who is wearing a white t-shirt and jeans, stands directly in front of the cell where two females are lodged. As Det. Demelia, who is wearing a dark hoodie and gray beanie, begins to search § 87(2)(b) § 87(2)(b) turns his head to his left and appears to look in the direction of the female cell. Approximately seven seconds later, Det. Demelia looks toward the cell and says something (<<05:35 – 05:54>>).

Det. Demelia (BR 08) denied engaging in conversation with any female prisoners already lodged in a cell and denied making the statements, “Mind your fucking business” and “Shut the fuck up, bitch.” Det. Demelia reviewed the relevant portion of the stationhouse footage, in which he appears to be conversing with someone in the cell immediately behind § 87(2)(b) but Det. Demelia did not recall the context of the conversation or what was being said.

Det. Toribio (BR 09) and Det. Mede (BR 10), who were both in the cell area with Det. Demelia and § 87(2)(b) denied hearing Det. Demelia make the aforementioned statements.

§ 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

Allegation (D) Abuse of Authority: Detective Roberto Toribio strip-searched § 87(2)(b)

Allegation (E) Abuse of Authority: Detective Claude Mede strip-searched § 87(2)(b)

In the stationhouse footage, from the camera opposite the cells (BR 11, 07), Det. Toribio, who is wearing a gray hoodie, black vest, and yellow winter hat, stands in front of § 87(2)(b) who is wearing black shirt and red winter hat. § 87(2)(b) removes his hat and hoodie. Det. Toribio engages in a short conversation with § 87(2)(b) before waving in the direction of the bathroom. Det. Toribio then walks toward the bathroom, to the left of the cells, and § 87(2)(b) follows. Once in the bathroom, on the far left of the screen, § 87(2)(b) lowers his jeans to his ankles. § 87(2)(b) appears to have a black garment underneath his jeans, but it is not clear if the black garment is underwear or another layer of shorts (<<05:40 – 06:25>>). At the 06:26 timestamp on the player, Det. Mede approaches the bathroom door and obscures the view of § 87(2)(b) for approximately 28 seconds. When Det. Mede moves to his left, § 87(2)(b) appears to be bent forward at the waist, but it is not clear what he is doing (<<06:54 – 07:25>>). Det. Toribio then steps farther into the bathroom and obscures the view of § 87(2)(b) At the 07:52 time stamp on the player, Det. Toribio moves to his left. § 87(2)(b) is visible and appears to be putting on a pair of pants. It is unclear if § 87(2)(b)'s underwear is exposed at this time, or if the garment exposed is a pair of shorts. Det. Toribio and § 87(2)(b) exit the bathroom and return to the cell area (<<07:52 – 08:34>>).

§ 87(2)(b) was unavailable to the investigation and thus no statement was obtained from him (see IAs for contact attempts).

Det. Toribio and Det. Mede had no recollection of this incident. Both detectives reviewed the tac plan (BR 12), which listed them as assigned to the prisoner van. Neither Det. Toribio nor

Det. Mede had any recollection of transporting § 87(2)(b) to the 46th Precinct stationhouse.

Det. Toribio had no recollection of bringing § 87(2)(b) into the bathroom and strip-searching him. Upon reviewing the stationhouse video footage, Det. Toribio still did not have an independent recollection of this incident and further did not recall if § 87(2)(b) made any furtive movements indicative of concealing contraband on his person. Det. Toribio explained that in the winter, many people wear double layers of clothing and “a lot” of garments, though could not remember how many garments of clothing § 87(2)(b) was wearing. From the video, Det. Toribio believed that the shorts § 87(2)(b) was wearing underneath his outermost pants had strings, so he told § 87(2)(b) to take the strings off, as per procedure. § 87(2)(b) said he would go to the bathroom and Det. Toribio brought § 87(2)(b) into the bathroom to remove his shorts, as Det. Toribio did not want him to do so in front of other prisoners. Det. Toribio denied bringing § 87(2)(b) to the bathroom for any other reason and did not remember if § 87(2)(b)'s underwear was ever exposed when § 87(2)(b) removed his shorts. Det. Toribio denied conducting a strip-search of § 87(2)(b).

Det. Mede reviewed the stationhouse video footage, but did not remember why Det. Toribio brought § 87(2)(b) into the bathroom and did not recall hearing Det. Toribio instruct § 87(2)(b) to go into the bathroom. Det. Mede testified that he approached the bathroom, as seen in the footage, to “check on” § 87(2)(b) but he did not know what § 87(2)(b) was doing in the bathroom. Det. Mede was not aware if § 87(2)(b) was wearing multiple layers of clothing or aware of there being an issue with § 87(2)(b) removing the strings from his shorts. Det. Mede did not see § 87(2)(b)'s underwear exposed in the video and denied conducting a strip-search of § 87(2)(b).

There were no notations in the 46th Precinct stationhouse Command Log indicating that § 87(2)(b) was strip-searched (BR 13).

§ 87(2)(g)

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) and § 87(2)(b) have been party (BR 14-15).
- Det. Demelia has been a member of service for 23 years and has been named a subject in 20 cases and 45 allegations, 10 of which were substantiated:
 - 200106932 involved substantiated allegations of physical force, threat of force, and two discourtesy – word allegations. The Board recommended Charges and the NYPD did not impose discipline. § 87(2)(g)
- Det. Toribio has been a member of service for 12 years and has been named a subject in three CCRB complaints and three allegations, none of which were substantiated. § 87(2)(g)
- Det. Mede has been a member of service for 16 years and has been named a subject in four CCRB complaints and four allegations, none of which were substantiated. § 87(2)(g)

Mediation, Civil, and Criminal Histories

- This case was not suitable for mediation.
- As of November 4, 2020, the New York City Office of the Comptroller has no record of a Notice of Claim being filed by § 87(2)(b) in regard to this complaint (BR 16).
- As of September 8 2021, the New York City Office of the Comptroller has no record of a

Notice of Claim being filed by § 87(2)(b) in regard to this complaint (BR 17).

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
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- [redacted]
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[redacted]
[redacted]

Squad: 14

Investigator: Casey McCann Inv. Casey McCann 12/21/2021
Signature Print Title & Name Date

Squad Leader: Cassandra Fenkel IM Cassandra Fenkel 12/21/2021
Signature Print Title & Name Date

Reviewer: _____
Signature Print Title & Name Date